



Limited Sources Justification

1. Identification of the agency and the contracting activity.

The requiring organization is the United States Department of Justice (DOJ), Justice Management Division (JMD), Office of the Pardon Attorney (PARDON). The contracting activity is the JMD Procurement Services Staff (PSS).

2. Nature and/or description of the action being approved.

This is a Justification and Approval (J&A) for Limited-Sources Justification pursuant to Federal Acquisition Regulation (FAR) 8.405-6. The Government anticipates awarding a Firm Fixed Price Call Order against DOJ Multiple Award Records and Information Management (RIM) Blanket Purchase Agreement (BPA) No. [REDACTED] for follow-on work under BPA Call Order [REDACTED]. The requirement will be solicited and awarded as a sole source to [REDACTED]

[REDACTED] The anticipated period of performance is a 12-month base with no option period.

3. Description of the supplies or services required to meet the agency's needs, including the estimated value.

The proposed action makes critical additions to an existing BPA Call Order awarded to Cadence Group, LLC. The purpose of the existing Call order was to obtain assistance in the review and subsequent sorting, electronic convenience copy preparation, and accession of clemency materials located in-house and those housed at the Washington National Records Center (WNRC). The specifics tasks under Call Order No. [REDACTED] are as follows:

- Designate records as temporary or permanent; resolve via destruction or re-boxing following electronic convenience copy preparation.
- Digitize 25 Warrant Books, create Digital Warrant Books, package and mail physical Books to NARA and make them part of PARDON's website
- Review of all in-house paper files at PARDON, with the purpose of resolving temporary/permanent withdrawal discrepancies at the WNRC.
- Records inventory and records schedule drafting and implementation:
 - a) Draft new schedules/update existing schedules; submit to NARA for approval.
 - b) Once schedules are approved, ensure proper implementation and adherence.

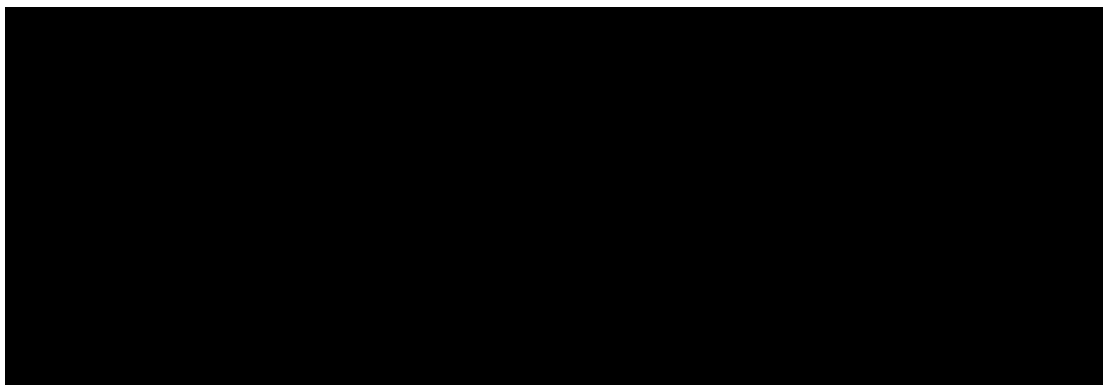
The new work will allow for improved and more efficient RIM for PARDON. Specifically, the new tasks are as follows:

- [REDACTED]
- [REDACTED]
- [REDACTED]
- Transition from Shared Drive to SharePoint Online: Transitioning PARDON's shared drive storage system to SharePoint Online is a crucial step in strengthening the office's RIM program. SharePoint Online will, among other things, allow for schedules to be applied at a folder level. This functionality will be vital in facilitating PARDON users to transition into their role as records custodians. There are several important parts to this task which are identified below:
 - (a) Taxonomy Support: Contractor will coordinate with RIM Specialist to assist PARDON staff with establishment of new folder structures, file naming conventions, standardizing case document locations, etc. These specifics will be included in the RIM Policy document.
 - (b) Migration of data + QC: Contractor will work with RIM Specialist to migrate relevant files to new folder structure, then QC the disposition of remaining files.
 - (c) Staff Training: Contractor will work with RIM Specialist to develop and assist in executing staff training for new records custodian responsibilities, as well as updates to PARDON RIM program overall.
- Subject/Reference Files Transition: The contractor will work with PARDON's RIM specialist to create a new IQ template in accordance with proposed schedule, populate new services, migrate relevant information into new templates, and destroy all old templates/data.

- RIM Policy Guidance: The contractor will assist PARDON's RIM Specialist in refining PARDON's RIM Policy Guidance, with an aim to launching to PARDON staff at the same time as training for the SharePoint Online transition occurs. The contractor will document steps involved in processes that will need to be repeated in the future.

As shown above, the new work and related tasks are logical follow-on and additions to the tasks under Call Order [REDACTED] which expires on February 28, 2025.

The total estimated value of the of the new work is depicted in the table below:



4. Authority and supporting rationale including, if applicable, demonstration of the proposed contractor's unique qualifications to provide the required supply or service.

FAR 8.405-6(a)(1)(i)(C), "In the interest of economy and efficiency, the new work is a logical follow-on to an original Federal Supply Schedule order provided that the original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures. The original order or BPA must not have been previously issued under sole-source or limited-sources procedures."

This procurement is being conducted in the interest of economy and efficiency as a logical follow-on to an original Federal Supply Schedule Order No. [REDACTED], already awarded to Cadence Group, LLC. The original award was competitively solicited and awarded using the ordering procedures at FAR 8.405.

It is necessary to limit competition for the new work described herein as a logical follow-on because the additional requirements are all changes to, extensions of, or additions to the work that [REDACTED] is already doing to assist with PARDON's RIM.

[REDACTED] has already worked with PARDON to revise existing records schedules and create new schedules. Much of the upcoming work is related to these schedules – shepherding them through NARA's approval process, applying schedules to PARDON's

database to allow for seamless behind-the-scenes adherence to schedules, transferring data to NARA in accordance with approved schedules, and destruction of temporary records past their retention period. [REDACTED] has been vital to PARDON in developing and implementing RIM policy. Cadence staff have assisted in several large RIM projects involving physical files, so their knowledge of PARDON's schedules and record types is comprehensive. As a result, [REDACTED] staff are now familiar with the complex mission of PARDON which drives its business processes and RIM.

Moreover, [REDACTED] will need to rely heavily on their technical and methodological knowledge and the insights gained from the preceding tasks under order No. [REDACTED] to execute the new work as described under section 3, above to include and address successful RIM Certification and policy guidance. This technical and methodological knowledge would take several months if not years to gain by another contractor

Another contractor would not be ready to execute the required tasks on day one, resulting in additional substantial time required to indoctrinate this new contractor. The inability to leverage over 12 months of intuitional knowledge, ultimately would result in sunken costs negatively affecting the budget at an estimated cost of \$122,991.70. Therefore, will not be fiscally responsible.

Since winning the competitive efforts under BPA Call Order No. [REDACTED] on September 27, 2023, [REDACTED] has provided RIM support to PARDON. Which has allowed Cadence staff to gain institutional knowledge and develop specialized and specific expertise related to PARDON's RIM requirements; a skill required to support the ongoing RIM requirements and address transitioning of the records from 'Shared drive' to 'SharePoint', certification and policy guidance. As a result of [REDACTED]'s months of institutional knowledge, specialized skills are currently available and ready to perform this requirement; no other contractor possesses this ability or can assist the Government in leveraging this collaboratively built knowledge which will result in both positive impacts to schedule and cost savings.

[REDACTED]
[REDACTED] That knowledge will allow [REDACTED] to transition seamlessly from one task to the next, as the tasks are all interrelated. If another contractor were required to be brought up to speed, PARDON could expect a six month or more delay in accomplishing these tasks. In particular, the setup of the Archivist module, initial transfer of data to NARA, and the SharePoint Online transition are time sensitive tasks. The RIMCert, which certifies a database as being compliant with relevant schedules, is dependent on the successful transfer of data to NARA. The subject/reference files have been newly defined in a schedule with assistance from

[REDACTED], so their involvement in the resolution of the data therein is logical. [REDACTED] simply cannot afford the delay in bringing the RIM program up-to-speed, which would result in additional (and potentially substantial) costs to the Government.

5. Determination by the ordering activity contracting officer that the order represents the best value consistent with FAR 8.404(d).

Although GSA-FSS has already determined prices under its Multiple Award Schedule (MAS) contracts and DOJ RIM BPA prices to be fair and reasonable, the Contracting Officer will ensure the proposed cost to the Government for the supplies or services covered by this justification are evaluated for price reasonableness and the contemplated order represents the best value to the Government. A best value determination will be based on a government technical evaluation and price analysis of the contractor's quote, which will include a comparison of the contractor's quote to the Independent Government Cost Estimate, and pricing established under DOJ RIM BPAs.

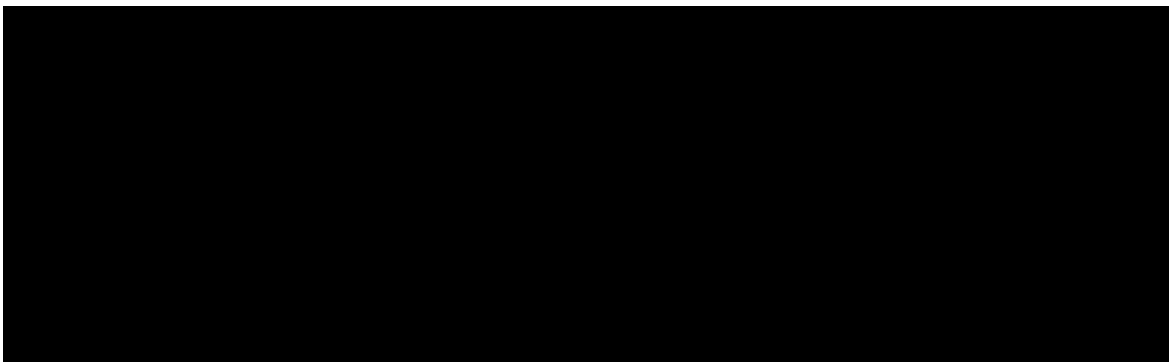
6. Description of the market research conducted among schedule holders and the results, or a statement of the reason market research was not conducted.

The current solicitation is proposed as a sole source to an existing contract (BPA Call Order No. [REDACTED]). The original Call Order was solicited amongst all BPA Holders under DOJ RIM BPAs, which was awarded competitively, and all potential bidders were given a fair opportunity to be considered.

Market research was conducted prior to awarding the RIM BPAs on September 1, 2023. Considering market research was conducted within 18 months, before award of the BPAs, the information is still current, accurate and relevant.

7. Any other facts supporting the justification.

The following costs may be duplicated if the new work is competed and awarded to another contractor:



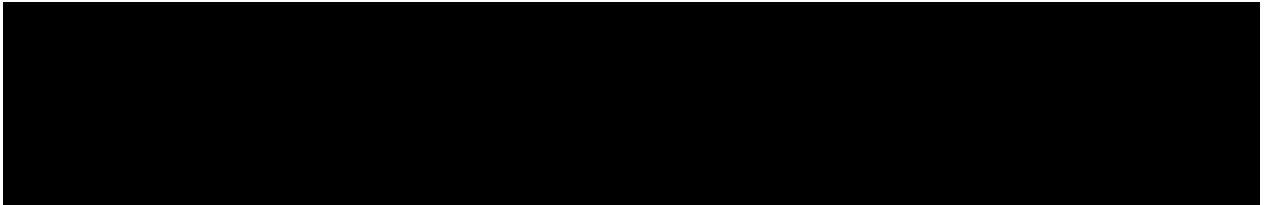
8. Statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for the supplies or services is made.

Subsequent actions are not anticipated. This follow-on order includes a single base year with no option period, which should be sufficient for PARDON to accomplish these necessary tasks.

9. Certifications, Concurrences and Approval.

Technical/Requirements Personnel Certification:

I certify that the information contained in this document for which I am responsible is accurate and complete to the best of my knowledge and belief.



Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

